647, such determination, compromise or settlement becomes final and conclusive for all purposes.

(g) *Disposition of payments.* All payments received under 14 U. S. C. 647 shall be covered into the Treasury of the United States as miscellaneous receipts.

[SEAL] M. B. FOLSOM,
Acting Secretary of the Treasury.

[F. R. Doc. 54-932; Filed, Feb. 9, 1954; 8:51 a. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans' Administration

PART 3—VETERANS CLAIMS

PART 4—DEPENDENTS AND BENEFICIARIES CLAIMS

MISCELLANEOUS AMENDMENTS

1. In Part 3, paragraph (b) (2) of § 3.102 is amended to read as follows:

§ 3.102 *Wartime service-connection.* * * *

(b) * * *

(2) Such chronic disease is shown by satisfactory evidence to have been present to a 10 percent disabling degree within 1 year from date of termination of active wartime service, or where service began prior to January 1, 1947, and extended thereafter, within 1 year from July 25, 1947, whichever is the earlier, and is subsequently shown by proper diagnosis, in cases of veterans who had such service in a locality having a high incidence of the disease under consideration, and the record is without evidence of inception prior to service or subsequent to discharge or July 25, 1947, whichever is the earlier: *Provided*, That residence during the year following discharge or July 25, 1947, whichever is earlier, was not in a region where the particular disease is endemic. In malaria cases if it is shown by satisfactory evidence from Veterans' Administration or private sources that malaria was present within 1 year from date of discharge or July 25, 1947, whichever is the earlier, following service in a region where the disease was endemic, the malarial condition will be considered a relapse and, consequently, entitled to service-connection and the assignment of a compensable rating. In those cases, however, where the facts preclude such assumption and the evidence clearly indicates that the malaria present within the first year after discharge or July 25, 1947, whichever is the earlier, was an initial attack, service-connection will not be conceded. Once service-connection has been established, lay evidence relative to the occurrences or relapses and use of quinine, etc., is acceptable for the purpose of establishing evaluations to cover a period up to 1 year; but it is necessary over longer periods that medical confirmation as to the persistence of the disease be obtained. (For criteria applicable on and after June 24, 1948, see §§ 3.80 and 3.86.)

* * * * *

2. Sections 3.105 and 3.106 are revised to read as follows:

§ 3.105 *Determination of service-connection.* Determinations relative to the origin or aggravation in active service of dental conditions will be in accordance with the requirements of paragraph I (a), Part I, and paragraph I (a), Part II, respectively, of the Veterans Regulation No. 1 series, as amended (38 U. S. C. ch. 12), and section 28, Title III, Public No. 141, 73d Congress. Service-connection will not be considered as having been established when the evidence clearly shows that the disabilities or conditions existed or were recorded at the time of enlistment subject to the provisions of § 3.107 (a) or originated subsequent to discharge from causes not related to service.

(Sec. 28, 48 Stat. 524, Pars. I (a), Parts I and II, Veterans Regulation 1 (a), as amended; 38 U. S. C. 722, ch. 12 note)

§ 3.106 *Evidence to establish service-connection.* (a) Service-connection for dental disabilities will be established by service records, documentary evidence in the form of reports of examinations (dental or physical), duly certified statements of dentists or physicians, or certified statements of fact from two or more disinterested parties. The disability must be shown to have been incurred in or aggravated by service as provided in this section. Statements certified by dentists or physicians must give the claimant's full name, the date he was first examined or treated, the date of subsequent treatments, if any, and contain a complete and detailed statement of the symptoms observed and diagnosis made. The name or number of all defective or missing teeth noted and the character and extent of any pathological condition of the investing tissues observed should be included. If exact dates cannot be given, the expression "on or about" an approximate date may be considered. Certified statements from disinterested parties must show the circumstances under which knowledge of the claimant's disability was obtained and as far as possible describe the symptoms and location of the disability observed.

(b) Where, however, after all sources of information have been exhausted and all variations in the records reconciled, there remains notation of filled teeth at time of discharge or release from active service and there was no notation of these teeth as defective or filled at induction or entrance into active service, service-connection may be granted in exceptional cases for such teeth, notwithstanding there is no record of treatment during active service, provided the veteran alleges treatment in service, giving the time and place of treatment, and the conditions and circumstances of his service at the time support his allegation and inception in service is consistent with sound dental judgment. Exceptional cases contemplated in this category are where the veteran had a considerable period of service, particularly in a combat area where records of treatment may not always have been recorded due to the stress and strain encountered under battle conditions or where extenuating circumstances are shown in those instances where the veteran served in this country or in other than combat. Service-connection should not be granted for the 3d molars at any time unless there is a definite record showing such teeth to have been diseased after a reasonable period of service. The 3d molars shown as present at induction and missing at discharge will not be granted service-connection unless there is an actual record of extraction for reasons other than malposition or impaction.

3. In Part 4, paragraph (b) (3) (xi) of § 4.176 is amended to read as follows:

§ 4.176 *World War I; establishment of service-connected disability of less than 10 per centum (Public No. 484, 73d Congress, act of June 28, 1934, as amended, Public No. 198, 76th Congress, act of July 19, 1939).* * * *

(b) *Definition of term "disability" as used herein.* * * *

(3) * * *

(xi) Otitis media, chronic, symptomatic, or loss of hearing of one foot or more (conversational voice), or loss of 20 decibels or more (adjusted speech decibel loss), or average loss of 15 decibels or more or one more than 30 (pure tone audiometry decibel loss).

* * * * *

(Sec. 5, 43 Stat. 608 as amended, sec. 2, 46 Stat. 1016, sec. 7, 48 Stat. 9; 38 U. S. C. 11a, 426, 707)

This regulation is effective February 10, 1954.

[SEAL] H. V. STIRLING,
Deputy Administrator.

[F. R. Doc. 54-934; Filed, Feb. 9, 1954; 8:53 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 936]

ILLINOIS, IOWA, MINNESOTA, MISSOURI AND WISCONSIN

REVOKING EXECUTIVE ORDERS NOS. 7185, 7212, 7452 AND 8331, AND PUBLIC LAND ORDERS NOS. 195, 379, 380, AND 381

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and otherwise and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Orders No. 7185 of September 20, 1935, No. 7212 of October 24, 1935, No. 7452 of September 19, 1936, and No. 8331 of January 24, 1940, and Public Land Order No. 195 of December 7, 1943, reserving certain lands as a part of the Upper Mississippi River Wildlife and Fish Refuge are hereby revoked.

2. Public Land Orders No. 379 of July 2, 1947, No. 380 of July 2, 1947, and No. 381 of July 2, 1947, reserving certain lands for use of the Department of the

Interior as wildlife refuge and management areas are hereby revoked.

3. The lands included in this revocation are acquired lands of the United States under the primary jurisdiction of the Department of the Army, and are not subject to the provisions of the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting a preference right of application to veterans of World War II and others.

ORME LEWIS.
Assistant Secretary of the Interior.

FEBRUARY 4, 1954.

[F. R. Doc. 54-901; Filed, Feb. 9, 1954; 8:46 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

PART 17—LIST OF AREAS

NATIONAL WILDLIFE REFUGES

EDITORIAL NOTE: For order affecting the tabulation in § 17.3, see Public Land Order 936 in the Appendix to Title 43, Chapter I, *supra*, revoking certain Executive orders and Public Land Order 195 reserving certain lands as part of the Upper Mississippi River Wildlife and Fish Refuge.

PROPOSED RULE MAKING

DEPARTMENT OF COMMERCE

Bureau of Foreign Commerce

[15 CFR Part 361]

BRITISH TOKEN IMPORT PLAN FOR 1954

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the regulations set forth below, in tentative form, governing the operation of the British Token Import Plan for the year 1954 are proposed to be issued by the Bureau of Foreign Commerce, Department of Commerce. Prior to the final adoption of such regulations, consideration will be given to any views pertaining thereto which are submitted in writing, in duplicate, to the British Commonwealth Division, Bureau of Foreign Commerce, Department of Commerce, Washington 25, D. C., and which are received not later than the close of business of the 15th day after publication of this notice in the FEDERAL REGISTER.

As indicated in the following regulations, in continuing the Token Plan for the year 1954, the British Government has adhered to the basic principle of the Token Plan of previous years—that shipments by U. S. firms of commodities subject to the Token Plan shall be on the basis of trade with the United Kingdom in such commodities during the base period years 1936, 1937 and 1938. However, one new feature has been added, namely, a limited participation by firms not having a prewar export base.

In connection with the Token Plan, as revised for 1954, it is proposed that different procedures and forms be substituted. These include "Token Quota Vouchers" in place of the Token Plan "scrip" of previous years and a requirement that eligible firms must have in their possession accepted orders (contracts) from their British customers before Token Quota Vouchers will be issued to them. It is believed that the proposed changes set forth in detail in the regulations will more effectively carry out the purposes of the Token Plan.

The British Commonwealth Division, Bureau of Foreign Commerce, will consider written requests, based upon a showing of hardship (such as the seasonal nature of the commodity) by U. S. firms having a prewar export base, for approval to ship commodities to the United Kingdom against their prospective Token Plan Quota, pending the final adoption of these regulations.

Sec.

361.1 Introduction.
361.2 What the Plan is.
361.3 Procedure for obtaining certification for prewar exports.
361.4 Issuance of token quota vouchers.
361.5 Use and transfer of token quota vouchers.
361.6 Validity period of token quota vouchers.
361.7 Procedure for distribution of quota balances not issued by June 30.
361.8 Additional information and reports.
361.9 Effect on United States export restrictions.
361.10 How to obtain information.
361.11 Denial of token plan privileges.
361.12 Inquiries on British Token Import Plan participants.
361.13 Commodities subject to the plan.

AUTHORITY: §§ 361.1 to 361.13 issued under R. S. 161; 5 U. S. C. 22.

§ 361.1 *Introduction.* The procedures governing administration of the British Token Import Plan, and the role of the Bureau of Foreign Commerce, Department of Commerce, therein, have been revised for the Plan year 1954 as set forth in this part.

§ 361.2 *What the Plan is.* (a) The "British Token Import Plan" is an arrangement with the British Government which permits United States manufacturers, their authorized agents, or other qualified exporters with established prewar trade connections in the United Kingdom (England, Scotland, Wales, and Northern Ireland) to export to that area token shipments of the specified commodities listed in § 361.13, the importation of which the British Government generally prohibits from dollar sources of supply under United Kingdom licensing procedure.

(b) Under the Plan, the British Government will permit imports in a yearly amount not to exceed 30 percent of the value of the average annual shipments of the specified commodities of each qualified exporter during a base period consisting of the years 1936, 1937, and 1938. The British Government requires appropriate evidence, issued under authority of the United States Government, that manufacturers wishing to take advantage of opportunities under the arrangement did in fact make shipments of the commodities to the United Kingdom during the base period. The Bureau of Foreign Commerce has agreed to act as certifying agent and issue appropriate certificates, in the form of token quota vouchers, which the exporter forwards to the British importer for presentation to the British Board of Trade as a basis for obtaining an import license. The procedure for obtaining certification for prewar exports is set forth in § 361.3.

(c) An overall national quota, mutually accepted by the Department of Commerce and the British Board of Trade, has been computed for each commodity group from official trade statistics for the base period years 1936, 1937 and 1938. Priority in the distribution of this overall national quota will continue to be given (as in prior years) until June 30 to those firms which are able to furnish appropriate evidence substantiating the value of their prewar trade with the United Kingdom during the base period in the specified commodities. However, such priority is subject to the conditions set forth in § 361.4.

(d) In addition, the procedures make possible a limited participation by firms not having a prewar export base under certain conditions, as hereinafter more fully explained in § 361.7.

§ 361.3 *Procedure for obtaining certification for prewar exports*—(a) *Eligibility for certification.* (1) Manufacturers who exported any of the items on the commodity list (§ 361.13) to the United Kingdom (England, Scotland, Wales, and Northern Ireland) during the base period 1936, 1937, and 1938, are eligible for certification under the Plan. "Manufacturer" means an individual, firm, or corporation that manufactures products sold through established markets. Such manufacturers must themselves request certification under the Plan and not through any agent. However, manufacturers may, under the procedure set forth in § 361.4 (b), authorize an agent to make application for their Token Quota Vouchers and to handle the distribution and sale of their products under the Token Plan.

(2) Individuals or firms, other than manufacturers, having an established export trade from the United States to the United Kingdom during the years 1936, 1937, and 1938 in the items on the commodity list (§ 361.13), may be eligible if they can demonstrate clearly that such trade was developed by them and not by a manufacturer. Persons or firms, not manufacturers, who believe that they are eligible to participate in the Token Plan may request a determination of eligibility from the British Token Import Plan Unit, British Commonwealth Division, Bureau of Foreign Commerce, Washington 25, D. C. Such a request must fully identify their export connections with the United Kingdom during the years 1936, 1937, and